

BEFORE THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2017-4997

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR CERTIFICATION TO PRACTICE ADDICTION COUNSELING IN THE STATE OF COLORADO OF MELISSA TIBBITS, CAC I (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Addiction Counselor Examiners ("Board") and Melissa Tibbits ("Applicant") as follows:

1. By application dated July 14, 2017, Applicant applied for certification to practice as a Certified Addiction Counselor I ("CAC I") in the State of Colorado ("Application").
2. The Board has jurisdiction over Applicant, the Application, and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the Application without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2017-4997. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
 - a. On or about July 14, 2017, Applicant applied for CAC I certification in the State of Colorado, and her certification request is currently pending.
 - b. On her Application, Applicant answered "yes" to the question which states: "Have you ever received a deferred judgment or been convicted of or pled nolo contendere to a violation of any federal,

state, or local law relating to the possession, manufacture, distribution, or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?”

c. On her Application, Applicant answered “yes” to the question which states: “Have you ever been convicted of, plead guilty to or nolo contendere to a felony, or accepted a deferred judgment or deferred prosecution to a felony charge?”

d. On or around July 6, 2004, Applicant pled guilty to DWAI, a misdemeanor, in Case No. 2004T263, in County Court, Rio Grande County, Colorado. She received a deferred sentence that included twelve (12) months of unsupervised probation and community service. On August 30, 2005, Applicant completed the terms of the deferred sentence, and the case was dismissed.

e. On or around October 29, 2013, Applicant pled guilty to Controlled Substance-poss Sch 1-4g/less, for heroin possession, a Class 6 felony, in Case No. 2013CR211, in District Court, Alamosa County, Colorado. She was sentenced to 69 days in jail, with credit for time served, and two (2) years of intensive supervised probation, which was revoked on April 15, 2014, and she was re-sentenced to three (3) years of intensive supervised probation to run concurrently with Case No. 2017CR34.

f. On or around May 22, 2014, Applicant pled guilty to Financial Tran Dev/unauth Use-under\$1000, for identity theft, a misdemeanor, in Case No. 2014CR34, in District Court, Alamosa County, Colorado. She was sentenced to 60 days in jail, with credit for time served, and eighteen (18) months of supervised probation to run concurrently with Case No. 2013CR211.

g. On or around January 29, 2018, Applicant submitted to an evaluation. The evaluator concluded that Applicant is not safe to practice as a CAC without treatment and monitoring.

h. Applicant admitted to a history of substance abuse and a felony conviction.

5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the Board finds that the above conduct is a violation of §12-43-222(1)(a) and (e), C.R.S., which state:

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article 43 if he or she:

(a) Has been convicted of or pled guilty or nolo contendere to a felony or received a deferred sentence to a felony charge. A certified copy of the judgment of a court of competent jurisdiction of such conviction or plea is conclusive evidence of the conviction or plea. In considering the disciplinary action, each board is governed by section 24-5-101, C.R.S.;

(e) Habitually or excessively uses or abuses alcohol, a habit-forming drug, or a controlled substance, as defined in section 18-18-102(5), C.R.S.

6. By virtue of the admissions contained in paragraphs 4 and 5, Applicant specifically agrees to accept a certificate subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a certificate. Applicant consents to the following limitations to her certification within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this certificate in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant's certification shall be placed on probation for a minimum period of two (2) years. Credit toward satisfying the period of probation shall be given only during such periods of time that Applicant is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

a. Applicant is not practicing as a CAC I or engaged in the practice of psychotherapy in the State of Colorado;

b. Applicant is not actively participating in a Board-approved peer assistance services program as set forth below in paragraphs 8 and 9 of this Order; and

c. Applicant is not otherwise in full compliance with the terms of this Order.

PEER ASSISTANCE SERVICES ("PAS")

8. As a term of this Order and Applicant's probationary status, Applicant shall enter into and successfully complete a contract with PAS for a minimum period of two (2) years, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later.

9. Applicant shall enter into a contract with PAS within fourteen (14) days from the effective date of this Order. Applicant agrees to cease the practice of psychotherapy after fourteen (14) days until such time as Applicant enters into a contract with PAS.

a. Therapy Monitoring. As a requirement of her contract with PAS, Applicant shall undergo individual therapy with an approved mental health provider, at a frequency and duration to be determined by PAS, as specified in the PAS contract signed by Applicant.

b. Urine/Blood Screens. As a requirement of her contract with PAS, Applicant shall submit to full panel urine or blood tests during participation in PAS, as ordered by the Board, Applicant's employer, or Applicant's treatment program monitor, at a frequency determined by Applicant's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Applicant must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Applicant's treatment program with Applicant's application for discharge of the probation period.

c. Other Requirements. Applicant shall comply fully and in a timely manner with all requirements, recommendations, restrictions, and directions of the treatment program, as specified in the PAS contract signed by Applicant.

d. Releases. Applicant hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Applicant's treatment progress, or lack thereof, with PAS, and will execute a release authorizing PAS to release any and all information pertaining to Applicant's case to the Board upon its request. Applicant shall keep all releases current and in effect.

e. Completion of Program. If Applicant satisfactorily completes the treatment program, verification to the Board by PAS of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Board to verify Applicant's completion of treatment. It is Applicant's responsibility to ensure that PAS submits verification to the Board of completion of treatment.

f. Withdrawal from Program. Applicant must immediately notify the Board in writing if Applicant withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Applicant's treatment program.

TERMS AND CONDITIONS

10. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

11. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

12. All expenses incurred or associated with any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

13. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

14. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

15. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

16. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

17. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

18. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

19. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

20. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

21. This Order shall be admissible as evidence at any hearing held before the Board.

22. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

APPLICANT

Melissa Tibbits

MELISSA TIBBITS
CAC I (Pending)

AGREED TO AND ORDERED BY:

**STATE BOARD OF ADDICTION COUNSELOR
EXAMINERS**

Darcie Magnuson

DARCIE MAGNUSON
Program Director

Effective this 23rd day of
May, 2018.